

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1309

By: Humphrey

AS INTRODUCED

An Act relating to capital punishment; staying the execution of judgments in all death penalty cases; prohibiting the Court of Criminal Appeals from ordering the execution of judgments in death penalty cases; prohibiting the setting of execution dates; vacating all current execution dates; suspending all statutes related to death penalty sentences; returning death penalty statutes to full force and effect upon repeal of act by the Legislature; providing construing provision; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1016.1 of Title 22, unless there is created a duplication in numbering, reads as follows:

A. The execution of the judgment in all cases where a sentence of death has been imposed is hereby stayed until further act of the Legislature.

B. The Court of Criminal Appeals shall not order execution of the judgment in cases where a sentence of death has been imposed.

1 C. No further execution dates shall be set by the Court of
2 Criminal Appeals or by the Governor of Oklahoma.

3 D. All execution dates currently in place at the time of the
4 effective date of this act shall be vacated.

5 E. All statutes governing the execution of the penalty of death
6 in this state are hereby suspended. Upon repeal of this act by the
7 Legislature, any such statute that has not otherwise been repealed
8 shall return to full force and effect.

9 F. The provisions of this act shall not be construed to vacate
10 the individual judgments in cases where a sentence of death has been
11 imposed.

12 SECTION 2. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

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17 60-1-10081 GRS 12/30/24

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